	MEMORANDUM CIRCULAR	DOCUMENT NO. BJMP-DICTM-MC-161
	TOPIC **DIGITAL SIGNATURE**	ISSUE NO. 1
		REVISION NO. 0
	SUB-TOPIC **DIGITAL SIGNATURE APPLICATION, ACCEPTABLE USE GUIDELINES, AND MANUALS**	EFFECTIVE DATE 24 DEC 2024
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1.0 REFERENCES

1.1. BJMP Memorandum Regarding the Use of Electronic Signature dated April 4, 2023;
1.2. DICT Philippine National Public Key Infrastructure Certificate Policy Version 2.0 dated January 18, 2017;
1.3. DOST Memorandum Circular No. 2013-002 Series of 2013 re Approval of the Philippine National Public Key Infrastructure (PNPKI) Certification Authority (CA) Certification Practice Statement (CPS) Version 1.0 dated December 23, 2013; and
1.4. Republic Act No. 8792 otherwise known as the Electronic Commerce Act dated June 14, 2000.

2.0 RATIONALE

The Bureau of Jail Management and Penology (BJMP) is united with the country's digital transformation as it adopts various technological innovations which include Digital Radio Communication and Dispatch System, Jail Service Intelligence Operations System, Web System Applications, Government Electronic Mail System (GovMail), Command and Data Center, and so on. One of the prominent innovations for the BJMP is the use of the GovMail, and ICT systems for its online transactions with the stakeholders that comprise of sending and posing of online documents, messages, forms, etc. Additionally, the documents being posted, and messages transacted online are associated with the use of electronic signatures (esig).

Currently, there is confusion about the appearance and operation of electronic signatures. As a result, there are challenges to the validity and integrity of the document information being transferred and received through online transactions due to this confusion. Furthermore, there are no guidelines yet established on the usage and management of esig.

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Administrative Rules and Regulations
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As the BJMP partakes in the transition towards a digital workplace, digital signature considered an essential component of the agency's modernization and online communication process. Hence, the Jail Bureau strategically implements a policy about esig, its application, acceptable use, and management in addressing the said problem. This will be continuously enhanced to extend its coverage throughout the jail jurisdictions until the Bureau will be able to take full advantage of the features and functionalities of the modern communication process that goes beyond online transactions that have authenticity, security, legal validity, efficiency, and convenience.

The purpose of this policy is to ensure the security, integrity, and authenticity of electronic documents. In addition, this is also to give guidance on the usage of digital signatures and to comply with the legal and regulatory requirements.

3.0 OBJECTIVES

3.1 To provide an overview of the digital signature, its functionality, and appearance;
3.2 To set guidelines on how to apply for a digital signature;
3.3 To ensure that digital signature is being utilized correctly through this policy's guidelines;
3.4 To set guidelines on the acceptable use of the digital signature;
3.5 To ensure that the knowledge and skill of the users will be continually honed; and
3.6 To inform the users of their responsibilities.

4.0 SCOPE/COVERAGE

This policy applies to BJMP personnel who use a digital signature to sign electronic documents.

5.0 DEFINITION OF TERMS

For purposes of this policy, the following terms are used, to wit:

Adobe Acrobat Reader – An application software for viewing, printing, signing, sharing, and annotating documents including Word files, PDFs, etc.

Certificate Authority – A certificate authority is a trusted third party that issues digital certificates. It verifies the identity of the signer and provides a trusted source for verifying digital signatures.

Digital Certificate – A digital certificate is an electronic document that contains a public key and other identifying information about the signer. It is used to verify the authenticity of the digital signature.

Digital Signature – A digital signature is an electronic signature that is used to verify the authenticity and integrity of electronic documents.

Hash Function – A hash function is a mathematical function that takes an input and procedures a fixed-size output. It is used to create a unique digital signature for each electronic document.

Portable Document Format (PDF) - A file format that provides an electronic image of text or text and graphics that looks like a printed document and can be viewed, printed, and electronically transmitted.

Public Key – A public key is a key that is used to verify the digital signature. It is contained a digital certificate and can be freely distributed.

Public Key Infrastructure (PKI) – PKI is a system that uses digital certificates and public key cryptography to provide a secure method of exchanging electronic documents.

Private Key – A private key is a secret that is used to sign electronic documents. It is kept secret by the signer and should never be shared with anyone else.

Signature verification – The process of using a digital signature algorithm and a public key to verify a digital signature on data.

Timestamping – timestamping is the process of adding a digital timestamp to an electronic document. It provides evidence that the document existed at a specific point in time and cannot be backdated.

6.0 PROCEDURES/DETAILS/GUIDELINES

6.1 GENERAL GUIDELINES

The following are the guidelines on the application and use of digital signature.

6.1.1 Application for digital signature is voluntary except for the key officials of the Jail Bureau.

6.1.2 A BJMP personnel

a. may obtain digital certificates from a recognized certification authority and ensure that the certificates are current and valid;
b. must keep their private keys secure and protected at all times;
c. must use strong passwords to protect their private keys and must not be shared with anyone else;
d. must ensure that their public keys are accurate and up-to-date and must be distributed to appropriate personnel and stakeholders;
e. must use a secure hash function to create a unique digital signature for each electronic document;
f. must comply with all legal and regulatory requirements related to digital signatures, such as the data privacy act, ease of doing business, and e-commerce law;
g. must retain a copy of any electronic document that has been signed with a digital signature, along with the digital certificate used to sign

the document;

h. must receive training on the use of digital signatures and be aware of the risks, benefits, and limitations of using digital signatures.

6.1.3 Exceptions to this policy may be granted on a case-by-case by the Office of the Directorial Staff of the Jail Bureau, based on a written request and justification;

6.1.4 This policy will be reviewed and updated as necessary, to ensure that it remains relevant and effective;

6.1.5 Scanned copies of signatures are not digital signatures;

6.1.6 Digital signatures must not be used for signing physical documents;

6.1.7 Digital signatures are designed for online transactions; and

6.1.8 Electronic documents containing digital signatures may be printed. However, it should not be scanned and be reproduced in copy. The original softcopy of the document should be digitally forwarded or saved.

6.2 SPECIFIC GUIDELINES

6.2.1 APPLICATION GUIDELINES FOR OBTAINING A DIGITAL SIGNATURE

The following are the guidelines set forth by the DICT pertaining to the application for new and renewal of digital signatures. This could change over time as necessary. For timely updates, go to the DICT website targeting the PNPKI.

FOR NEW APPLICATIONS

6.2.1.1 Application for an individual digital signature should be requested from the Department of Information and Communications Technology;

6.2.1.2 Application is made online which can be directed to this link https://dict.gov.ph/pnpki-individual-certificate/;

6.2.1.3 Prepare a softcopy of the necessary documentary requirements:

6.2.1.3.1 Philippine National ID; or

6.2.1.3.2 Combination of the following: Birth certificate or Philippine Passport and Unified Multi-Purpose Identity (UMID) compliant card;

6.2.1.3.3 Online identity verification (via video call); and

6.2.1.3.4 One (1) passport-size photo taken within the last six (6) months.

6.2.1.4 Online identity verification (via video call). Note: The file name of documents (softcopy) must be in this format: Lastname Firstname_Document Type (e.g. Dela Cruz Juan_Passport or Dela Cruz Juan UMID);

6.2.1.5 Taxpayer Identification Number (TIN);

6.2.1.6 Phone number (mobile and/or landline);

6.2.1.7 Email address owned by the individual or authorized by the owner for use by the subscriber; and

6.2.1.8 Consent to verify and share the information submitted (included in the application form).

FOR RENEWAL OF APPLICATION

6.2.1.9 Duly accomplished application form (see annex A);
6.2.1.10 Same requirements as the new application; and
6.2.1.11 Online identity verification (via video call). Note: Please send complete application requirements to info.pnpki@dict.gov.ph for NCR or to the respective PNPKI Regional Office. In the absence of a UMID-compliant card, ANY TWO of the following cards are allowed as valid IDs based on BSP Circular 608 series of 2008 (see annex B).

6.2.2 CERTIFICATE DOWNLOAD AND INSTALLATION

6.2.2.1 The user has already successfully completed the PNPKI registration process;
6.2.2.2 The user has received his/her PNPKI Self-Service Portal Credentials;
6.2.2.3 Kindly refer to the Annex M re The DICT step-by-step process of requesting and downloading PNPKI Digital Certificates;
6.2.2.4 Kindly refer to the Annex N re The DICT step-by-step process on how to install certificates on your Windows key store;
6.2.2.5 Kindly refer to the Annex O re The DICT step-by-step process of how to install certificates in Mac OS; and
6.2.2.6 Kindly refer to the Annex P re The DICT step-by-step process of downloading and installing an authentication certificate on an iOS device. The user is expected to have an iOS device with a version of 13.3 or higher.

6.2.3 ACCEPTABLE USE

DOCUMENT SIGNING

These procedures illustrate how to digitally sign PDF documents using Adobe Acrobat Reader DC.

6.2.3.1 The user should have installed Adobe Acrobat Reader version 11 or higher. To download this software, go to this link (https://get.adobe.com/reader);
6.2.3.2 The user should have created backup files of the PNPKI digital certificates;
6.2.3.3 The user has installed the PNPKI digital certificates into their computer device. If the user hasn't installed the certificates, kindly check and follow the procedures stated in para 6.2.2;

6.2.3.4 Please take note that the document to be signed could be in PDF format or MS Word Document;
6.2.3.5 Kindly refer to the Annex C re DICT step-by-step process of digitally signing PDF with Adobe Acrobat Reader DC;
6.2.3.6 Kindly refer to the Annex D re The DICT step-by-step process on how to add a digital signature in MS Word Document;
6.2.3.7 Kindly refer to the Annex E re The DICT step-by-step process of using a digital ID File with Adobe Reader;
6.2.3.8 Kindly refer to the Annex F re The DICT step-by-step process on the digital signing of PDF with DigiSigner;
6.2.3.9 Kindly refer to the Annex Q re The DICT step-by-step process on how to add Timestamps with Adobe Reader; and
6.2.3.10 Kindly refer to the Annex R re The DICT step-by-step process on how to add Timestamp with Foxit.

EMAIL SIGNING

These procedures illustrate how to digitally sign in to electronic mail accounts.

6.2.3.11 The user should have created backup files of the PNPKI digital certificates;
6.2.3.12 The user has installed the PNPKI digital certificates into their computer device. If the user hasn't installed the certificates, kindly check and follow the procedures stated in para 6.2.2;
6.2.3.13 The user has YahooMail, Microsoft Outlook, Thunderbird or Gmail account;
6.2.3.14 Kindly refer to the Annex G re The DICT step-by-step process on how to configure YahooMail for Thunderbird;
6.2.3.15 Kindly refer to the Annex H re The DICT step-by-step process on how to digitally sign and encrypt emails using Thunderbird;
6.2.3.16 Kindly refer to the Annex I re The DICT step-by-step process on how to digitally sign and encrypt email using MS Outlook; and
6.2.3.17 Kindly refer to the Annex J re The DICT step-by-step process on how to configure Gmail for Thunderbird.

DELETING CERTIFICATES

6.2.3.18 Kindly refer to the Annex K re The DICT step-by-step process on how to delete your digital certificates from Mozilla Thunderbird; and
6.2.3.19 Kindly refer to the Annex L re The DICT step-by-step process on how to delete unwanted copies of digital certificates from a Windows computer.

6.2.4 RESPONSIBILITIES OF THE DICTM

6.2.4.1 Assist NHQ Personnel and Regional ICTM with the application for the digital signature;
6.2.4.2 Address queries from NHQ Personnel and Regional ICTM about the digital signature;
6.2.4.3 Provides necessary training to BJMP Personnel regarding digital signatures;
6.2.4.4 Review and update this MC to ensure that its provisions are relevant to the needs of the Jail Bureau;
6.2.4.5 Direct and supervise the Regional ICT in the implementation of this MC; and
6.2.4.6 Do related documentation.

6.2.5 RESPONSIBILITIES OF THE RICTMD

6.2.5.1 The BJMP Regional Office through its Regional ICTM Division shall assist its personnel with the application for the digital signature;
6.2.5.2 Ensure adherence of their respective concerned offices and jail units in the implementation of this MC;
6.2.5.3 Shall report any concerns in relation to the application, use, management, technical security, violation, and other related cases to the DICTM; and
6.2.5.4 Shall do related documentation.

6.2.6 PERSONNEL TRAINING/SEMINAR

To ensure that the knowledge and skill of personnel have this digital signature, they will be continually honed to updates through seminars and training. Proper training for users of the digital signature system is crucial to ensure that they understand how to use the system securely and effectively. This can include training on password management, phishing awareness, and other security best practices.

6.2.6.1 The DICTM and Regional ICT Divisions Staff shall conduct training, seminars, and awareness of digital signatures for the personnel in their area of responsibility; and
6.2.6.2 Refresher courses shall be conducted at least once a year.

6.2.7 PREVENTIVE MAINTENANCE

All BJMP personnel having this digital signature are encouraged to observe the following guidelines for the proper usage, care, and maintenance of the signature systems to remain reliable and secure:

6.2.7.1 Regular software updates: Digital signature software should be updated regularly to ensure that any security vulnerabilities are

patched and any bugs are fixed. This can be done manually or automatically, depending on the software;

6.2.7.2 Hardware maintenance: The hardware used for digital signature systems should be regularly inspected to ensure that it is functioning properly. This can include checking for physical damage, cleaning the components, and replacing any parts that are no longer functioning correctly;

6.2.7.2.1 Downloading the latest firmware or drivers for your hardware;

6.2.7.2.2 Downloading and installing the latest updates for your computer software; and

6.2.7.2.3 Update with the latest antivirus protection updates on servers or computers.

6.2.7.3 Security audits: Regular security audits should be conducted to identify any potential vulnerabilities in the system and the hardware. Regular changing of PNPKI account passwords should be done.

6.2.8 CONFIDENTIALITY CLAUSE

All BJMP personnel shall maintain the confidentiality of any sensitive information that pertains to modern digital communication systems and shall not use, disclose, furnish, and make accessible such information to anyone other than authorized personnel as necessary.

6.2.9 PENALTY CLAUSE

Any unauthorized use of the digital signature of any BJMP personnel shall be dealt with accordingly in accordance with the BJMP administrative machinery.

7.0 MONITORING PROCEDURE/TOOL

The Chief, RICTMD shall assist in the mainstreaming of the digital signature application, and other activities related, if any, to the personnel in their respective areas of responsibility with all the laws and rules relative to it.

An annual list of personnel with registered digital signatures shall be prepared, consolidated, and submitted by the RICTMD to the DICTM for inventory and information.

The DICTM may hold meetings quarterly for any updates or new guidelines on the policy.

8.0 FINANCIAL CLAUSE

The Regional Directors or Program Directors shall include in their Annual Budget Proposal or allocation of the budgetary requirements in the operational sustainability of the

digital signature system, such as but not limited to training and seminars or components, if any.

9.0 SEPARABILITY CLAUSE

In the event that any provision or part of this policy is declared invalid by a competent authority, all other provisions not affected by such declaration shall remain valid and effective.

10.0 REPEALING CLAUSE

All other existing issuances that are inconsistent with this policy are hereby amended or modified accordingly.

11.0 EFFECTIVITY

This Circular shall take effect fifteen (15) days after its filing at the University of the Philippines Law Center in consonance with Sections 3 and 4, Chapter 2, Book II of Executive Order No. 292, otherwise known as the "The Administrative Code" of 1987.

12.0 ANNEXES

12.1 Annex A – Application Form for Digital Certificate;
12.2 Annex B – Valid IDs based on BSP Circular 608 series of 2008;
12.3 Annex C – The DICT step-by-step process of digitally signing PDF with Adobe Acrobat Reader DC;
12.4 Annex D – The DICT step-by-step process on how to add a digital signature in MS Word Document;
12.5 Annex E - The DICT step-by-step process of using a digital ID File with Adobe Reader;
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12.15 Annex O - The DICT step-by-step process of how to install certificates in Mac OS;
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